

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

3. KENNETH CROMPTON V. DAYNA CROMPTON

23FL0077

On January 5, 2026, the court held an evidentiary hearing regarding whether Respondent had rebutted the Family Code § 3044 presumption. The court found Respondent had failed to demonstrate the presumption had been overcome. The court then made orders regarding conjoint counseling and parenting time and set a review hearing on May 7, 2026 to determine Respondent's progress in conjoint therapy as well as supervised parenting time.

Petitioner filed a Supplemental Declaration on April 24, 2026. Respondent and Minors' Counsel were served on April 22, 2026. Petitioner outlines the lack of progress since the January 5, 2026 hearing. Respondent continues to miss visits on a regular basis. Respondent continues to interrogate the minors about the court proceedings. Respondent's concerning behaviors with inundating Petitioner with messages on the co-parenting application has continued as well. Petitioner requests the parenting time be reduced to every other week as Respondent has only attended five out of the 15 scheduled visits. Petitioner further requests an additional drug testing protocol, due to concerns with Respondent's testing anomalies. Petitioner arranged for the minors to participate in conjoint therapy. The therapist determined that it is not appropriate at this time, due to the minors' unwillingness to engage with Respondent.

Respondent has not filed a Supplemental Declaration.

Minors' Counsel has not filed a Supplemental Declaration.

The court has read and considered the filings as outlined above. The court makes the following modifications to the current orders, as the modifications are in the best interests of the minors. Conjoint therapy shall not commence until Respondent demonstrates a minimum of four consecutive months of consistent parenting time with no missed or cancelled visits. Further conjoint therapy shall not commence until the minors' individual therapist as well as conjoint therapist believe it is appropriate. The minors shall continue in individual therapy at a frequency and duration as directed by the therapist not to exceed one year. The therapist shall determine the goals and objectives of therapy. Respondent shall not discuss any aspects of the court case, custody, or parenting time with the minors under any circumstances except under the supervision and direction of a therapist. Respondent shall continue to have professionally supervised parenting time at a frequency of one time every other week for a period of two hours. Respondent shall submit to random urine drug testing through U-Verify drug testing with DNA verification. Testing

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

May 7, 2026

8:30 a.m./1:30 p.m.

shall occur three times per month. The first test shall occur within three weeks of this order. Petitioner shall direct Respondent to test by 10:00 AM and Respondent shall complete the test the same day. Requests to test must be made at least seven days apart. Results shall be sent to Petitioner and Minors' Counsel directly by the testing center. The initial swab and/or test shall be coordinated with Minors' Counsel to ensure compliance. Respondent shall continue to participate in individual counseling at a frequency and duration as set by the therapist to address issues related to aggression, emotional regulation, and substance use disorder. Respondent shall follow all recommendations of the therapist. Therapy shall not exceed one year in duration.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: THE COURT HAS READ AND CONSIDERED THE FILINGS AS OUTLINED ABOVE. THE COURT MAKES THE FOLLOWING MODIFICATIONS TO THE CURRENT ORDERS, AS THE MODIFICATIONS ARE IN THE BEST INTERESTS OF THE MINORS. CONJOINT THERAPY SHALL NOT COMMENCE UNTIL RESPONDENT DEMONSTRATES A MINIMUM OF FOUR CONSECUTIVE MONTHS OF CONSISTENT PARENTING TIME WITH NO MISSED OR CANCELLED VISITS. FURTHER CONJOINT THERAPY SHALL NOT COMMENCE UNTIL THE MINORS' INDIVIDUAL THERAPIST AS WELL AS CONJOINT THERAPIST BELIEVE IT IS APPROPRIATE. THE MINORS SHALL CONTINUE IN INDIVIDUAL THERAPY AT A FREQUENCY AND DURATION AS DIRECTED BY THE THERAPIST NOT TO EXCEED ONE YEAR. THE THERAPIST SHALL DETERMINE THE GOALS AND OBJECTIVES OF THERAPY. RESPONDENT SHALL NOT DISCUSS ANY ASPECTS OF THE COURT CASE, CUSTODY, OR PARENTING TIME WITH THE MINORS UNDER ANY CIRCUMSTANCES EXCEPT UNDER THE SUPERVISION AND DIRECTION OF A THERAPIST. RESPONDENT SHALL CONTINUE TO HAVE PROFESSIONALLY SUPERVISED PARENTING TIME AT A FREQUENCY OF ONE TIME EVERY OTHER WEEK FOR A PERIOD OF TWO HOURS. RESPONDENT SHALL SUBMIT TO RANDOM URINE DRUG TESTING THROUGH U-VERIFY DRUG TESTING WITH DNA VERIFICATION. TESTING SHALL OCCUR THREE TIMES PER MONTH. THE FIRST TEST SHALL OCCUR WITHIN THREE WEEKS OF THIS ORDER. PETITIONER SHALL DIRECT RESPONDENT TO TEST BY 10:00 AM AND RESPONDENT SHALL COMPLETE THE TEST THE SAME DAY. REQUESTS TO TEST MUST BE MADE AT LEAST SEVEN DAYS APART. RESULTS SHALL BE SENT TO PETITIONER AND MINORS' COUNSEL DIRECTLY BY THE TESTING CENTER.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

THE INITIAL SWAB AND/OR TEST SHALL BE COORDINATED WITH MINORS' COUNSEL TO ENSURE COMPLIANCE. RESPONDENT SHALL CONTINUE TO PARTICIPATE IN INDIVIDUAL COUNSELING AT A FREQUENCY AND DURATION AS SET BY THE THERAPIST TO ADDRESS ISSUES RELATED TO AGGRESSION, EMOTIONAL REGULATION, AND SUBSTANCE USE DISORDER. RESPONDENT SHALL FOLLOW ALL RECOMMENDATIONS OF THE THERAPIST. THERAPY SHALL NOT EXCEED ONE YEAR IN DURATION.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

4. MARY CROWDER V. JEFFREY CROWDER

PFL20120584

Respondent filed a Request for Order (RFO) on February 26, 2026, seeking a termination of permanent spousal support as well as termination of insurance payments for the parties' adult daughter. Petitioner was personally served in accordance with Family Code § 215 on March 5, 2026. Respondent filed and served an Income and Expense Declaration on February 17, 2026.

Petitioner filed and served her Responsive Declaration on April 22, 2026, along with her Income and Expense Declaration. Petitioner objects to the termination of permanent spousal support and requests an increase in spousal support. Petitioner also seeks Family Code section 2030 attorney's fees. Petitioner does not address the issue of health insurance.

The court finds this is a post-judgment request to modify spousal support and as such, the court must take testimony on the Family Code section 4320 factors. Parties are ordered to appear for the hearing to select mandatory settlement conference and trial dates.

The court finds that the issue of payment of the parties' adult daughter's medical insurance requires testimony. Parties are ordered to appear to appear for the hearing to select mandatory settlement conference and trial dates.

Regarding the request for attorney's fees, the public policy of Family Code section 2030 is to provide "at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation." In re Marriage of Keech, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

The court finds there is a disparity in income between the parties. The court finds Respondent does have the ability to pay some of Petitioner's attorney's fees. The court therefore grants the request for Family Code section 2030 attorney's fees in the amount of \$1,500. Payment may be made in one lump sum, or in monthly payments of \$150 with the first payment due on May 15, 2026, directly to Petitioner's counsel. Further payments are due on the 15th of each month until paid in full. If any payment is missed or late, the entire amount shall become immediately due and payable with legal interest.